

Terms of Service

Legal & compliance · draft for counsel review

Provider	Smart Buildings Inc. / ATLAS Habitat Initiative ("we", "us")
Product	ATLAS OS (the Habitat Twin)
Status	Draft v0.1 — review with counsel before use
Effective	[date on publication]
Governing law	[Province, Canada — e.g. Ontario]

****Disclaimer.**** Template for review by qualified counsel; not legal advice.

1. Agreement

By accessing or using ATLAS OS (the "Service",) you agree to these Terms. If you use the Service for an organization, you represent you may bind it.

2. The Service

ATLAS OS is an operations and visualization layer (digital twin, telemetry, incident feed, broadcast) for ATLAS habitats. It is provided on a subscription or evaluation basis.

3. Safety limitation (critical)

The Service is an **observe and advise optimization layer only** does **not** control, and must never be relied upon for, life safety functions (fire, egress, electrical isolation, biogas, water safety), which are held by independent, safety rated building controls. You must not configure or use the Service as a life safety dependency. See [Owner's Project Requirements](#).

4. Acceptable use

You will not: (a) break the law or others's rights; (b) reverse engineer or circumvent security; (c) overload, probe, or disrupt the Service; (d) misuse resident data; (e) use it as a safety critical control system (see §3). We may suspend access for violations.

5. Accounts & security

Keep credentials confidential; you are responsible for activity under your account; notify us of any compromise. We may require SSO/MFA for operators.

6. Data & privacy

Your use is subject to the [Privacy Policy](#) and, for business customers, the [Data Processing Addendum](#). You are responsible for the lawfulness of data you input.

7. Intellectual property

The Service and its content are owned by us and licensed, not sold (see the repository [LICENSE](#)). Open source and third party components remain under their own licenses. Feedback may be used without obligation.

8. Availability & changes

We target high availability but provide the Service “as is”; we may modify or discontinue features with reasonable notice. Local first operation means core building function does not depend on Service uptime.

9. Warranties & liability

THE SERVICE IS PROVIDED “AS IS” WITHOUT WARRANTIES OF ANY KIND. TO THE MAXIMUM EXTENT PERMITTED BY LAW, OUR AGGREGATE LIABILITY IS LIMITED TO FEES PAID IN THE PRIOR 12 MONTHS, AND WE ARE NOT LIABLE FOR INDIRECT OR CONSEQUENTIAL DAMAGES. Nothing limits liability that cannot be limited by law.

10. Indemnity

You will indemnify us against claims arising from your misuse of the Service or violation of these Terms.

11. Term & termination

Either party may terminate per the applicable order/agreement; we may suspend for breach or risk to safety/security. On termination, your access ends and data is handled per the [retention schedule](#).

12. Governing law & disputes

These Terms are governed by the laws of [Province, Canada]; disputes resolved in the [venue], subject to any mandatory consumer protection ~~laws~~ of

13. Contact

Elijah@vfitter.com

Pairs with the Privacy Policy, DPA, and repository LICENSE.

